

HOUSE No. 1549

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing relief of 40B regulations for municipalities sheltering individuals on behalf of
DHCD.

PETITION OF:

NAME:

Joseph D. McKenna

DISTRICT/ADDRESS:

18th Worcester

DATE ADDED:

1/7/2025

HOUSE No. 1549

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 1549) of Joseph D. McKenna relative to cities and towns sheltering individuals for certain state or federal housing agencies. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1353 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing relief of 40B regulations for municipalities sheltering individuals on behalf of DHCD.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40B of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by adding the following new section at the end thereof:-

3 Section X, Any municipality which is so ordered by the Federal Government or by the
4 Commonwealth through the Department of Housing and Economic Development, the
5 Department of Housing, or any other state or federal agency to provide an emergency shelter site
6 for homeless populations greater than 10 individuals within its borders shall be granted 'safe
7 harbor' from meeting the regulations and requirements of Chapter 40B namely including the
8 Commonwealth's Subsidized Housing Inventory requirement threshold of 10%, for a period of
9 not less than 5 years